SAINT ANN PARISH
502 MAIN STREET
PHOENIXVILLE, PENNSYLVANIA
19460

Sales: Melissa Blake

Saint Ann Parish - SNOW 26-29 (Saint Ann Cemetery)

West Pothouse Road Phoenixville, Pennsylvania 19460

Est ID: EST4003774

Date: Oct-19-2026

Email: operations@churchofsaintann.org

Phone: 610-933-3732 x 108

DEFINITIONS

The Parties

CLIENT - Saint Ann Parish (Saint Ann Cemetery)

CONTRACTOR - Bates Landscaping

DURATION - The Proposal covers a period of time from November 1, 2026 to April 1, 2029 / Each year increases by 2% to adjust for inflation unless otherwise noted here

Designated point of contact -

- Name - Jeffrey Fisher
- Email - operations@churchofsaintann.org
- Direct Phone - 610-933-3732 x 108

Secondary Designated point of contact - NEED CONTACT

- Name -
- Email -
- Direct Phone -

SERVICE SPECIFICATIONS

Below is the Service Level Outline, as confirmed with Customer for the Proposal

Clearing Questions, answer that does NOT apply will have a strike through it *

Hours of Operation -

Monday - Thursday 7:30 AM (Church)
b. Friday and Saturday 8:30 AM (Church)
c. Saturday Vigil 4:30 PM (Chapel)
d. Sunday 7:00 AM and 9:30 AM (Church) and
e. Sunday 9:30 AM (Chapel)
f. Holy Days 8:00 AM and 6:30 PM (Chapel)

~~24 Hour Facility~~

~~**When are Shift Changes if 24 hours**~~

See special schedule plus weddings, etc

Driveways -

A.) All driveways are NOT cleared by BATES

~~B.) All open driveways without parked cars in them will be cleared 1x at the end of the storm~~

~~C.) All driveways with parked cars in them will be cleared 1x at the end of the storm at additional T+M rates~~

~~**Walkways**~~

~~A.) All walkways and emergency exits will be cleared 1x end of the storm~~

~~B.) All handicap ramps and emergency exits will be cleared every 2", then all remaining walkways to be cleared at the end of the storm~~

~~C.) All walkways, handicap ramps and emergency exits will be cleared throughout entire event continually every 2".~~

Plowing -

~~A.) Teams will clear roadways, lots and entrances every 2" during the entire event then clear fully at end of event~~

B.) Teams will clear only emergency roads and entrances every 3-5" to keep open and accessible then clear fully at end of event

Shoveling Between Cars in Lots and/or Driveways -

A.) We do not require shoveling between or around cars

~~B.) Shoveling between and around parked vehicles will be performed without prior authorization at the end of the storm and billed additionally on a time-and-materials basis.~~

~~C.) Shoveling between and around parked vehicles requires prior authorization and will be billed on a time-and-materials basis.~~

Dedicated Equipment and Material -

~~A.) To ensure reliable service, dedicated equipment and/or materials will be staged on-site and kept ready for events~~

~~between December 1 and March 31.~~

B.) No material or equipment needs to be stored on site

~~C.) Client requests no equipment or material storage onsite and approves time and material hauling rates per event to deliver equipment and material~~

Additional Notes + Requirements, specifics

Bates Landscaping will only clear Interior roadways around the cemetery.

SERVICE OUTLINE -

~~**Exclusive Equipment Retainer** (For per push or Time and Material contracts)~~

~~For properties requiring higher readiness or rapid response, dedicated equipment and material may be staged on-site throughout the snow season (Dec 1 – Mar 31). This ensures we are fully prepared for service on short notice with the right machines ready to go.~~

~~**Retainer Schedule:** 4 equal monthly payments~~

~~**Approval Discount:** Pricing above valid if approved by Sept 30; after that date, a 20% increase applies~~

~~**Retainer Credit:** If a plowable snowfall occurs during the month, the retainer for that month will be applied as a credit against the snow contract. Can be used at any point during the snow season or in a later snow season.~~

Pre + Post Season Mobilization (For per push or Time and Materials contracts)

One-time flat fee (invoiced December 1) for all preseason setup and backend support:

- Site staking (curbs, utilities, drainage areas)
- Property condition documentation (photos & logging)
- Equipment and material staging
- Supervisor site inspection and crew orientation
- Office setup and system preparation
- Post-season cleanup (leftover material, trash, debris clearing in staging area)

De-icing Application, Roadways, Driveways, and Parking Lots

Recommended as industry best practice to prevent snow bonding to pavement

Applications are made before, during, and after storms as needed, at the contractor's discretion.

- Roadways & Parking Lots: Automatically applied

De-icing Application, Sidewalks and Walkways

Recommended as industry best practice to prevent snow bonding to pavement

Applications are made before, during, and after storms as needed, at the contractor's discretion.

- Sidewalks & Walkways: Automatically applied

Follow Up Visits

Post-storm touch ups for conditions that don't warrant a full service. May include:

- Spot shoveling or salting
- Clearing drifted areas or opening parking stalls
- Targeted de-icing to guard against re-freeze
- Inspections to clarify if further service is needed

Since needs post storm may vary depending on the event our follow up visits are billed at time and materials rates.

Snowfall Increments

Shown in 2" increments as outlined below in pricing structure. Snow plowing and shoveling performed during each snow event per the contract terms.

8.1" + Snowfall Increment, PER INCH PRICE (Per Inch Pricing Above 8" In One Event)

If snowfall exceeds 8 inches in one event, we bill:

- The 6–8" tier price, plus
- Per inch pricing for any accumulation beyond 8", in 1-inch increments

Example: An 8.3" storm = 6–8" tier + 1 extra inch

TIME + MATERIAL RATES AND INFORMATION -

When Time & Materials Rates Apply:

- Follow up visits
- Any event classified by the U.S. National Weather Service as a blizzard, defined as:
    - Large amounts of snow or blowing snow
    - Winds exceeding 35 mph
    - Visibility less than ¼ mile for an extended time
- Any event classified as an ice storm with 0.25 inches or more of ice accumulation

Long-Duration Storms with Low Daily Totals

- Storms where measurable snow (0.1"+) falls over 2–3 consecutive days, or wind causes persistent blowing/drifting
- These events often require multiple visits per day despite relatively low total accumulation

Freezing Rain, Ice, or Sleet Events

- Conditions where surfaces are coated with hazardous freezing precipitation
- The contractor will proactively apply plowing, shoveling, and de-icing services throughout the event and after, as needed for safety

Why it's billed Time + Materials: These events require repeated mobilizations, extended equipment use, and flexible response beyond the scope of standard service.

CONTRACT SERVICES	Visits	Billing Type	Visit Price	Season Price
Pre & Post Season Mobilization	**1**	**Per Season**	**$473.44**	**$473.44**
			SubTotal (All Contract Services)	**$473.44**
			Taxes	**$0.00**
			Total (All Contract Services)	**$473.44**

The total price of all seasonal services is $473.44 collected in 1 payments of $473.44 per payment ($473.44 after tax).

Extra Services	Visits	Billing Type	Visit Price	Season Price
De-Icing Application, Roadways, Driveways & Parking Lots	**1**	**Per Visit**	**$577.50**	**$577.50**
0" - 2" Snowfall	**1**	**Per Visit**	**$450.00**	**$450.00**
2.1" - 4" Snowfall	**1**	**Per Visit**	**$675.00**	**$675.00**
4.1" - 6" Snowfall	**1**	**Per Visit**	**$900.00**	**$900.00**
6.1" - 8" Snowfall	**1**	**Per Visit**	**$1,125.00**	**$1,125.00**
8.1" + Snowfall, PER INCH PRICE	**1**	**Per Visit**	**$394.00**	**$394.00**

Snow Removal for Each Additional Inch Above 8". Service Includes Pushing, Shoveling and Blowing.

Extra Services	Visits	Billing Type	Visit Price	Season Price
Follow Up + Time & Materials Rates	**1**	**Per Hour/ Unit**		

See above for descriptions. These rates also apply for follow up visits on per push or Time and Material contracts

Item Name	Rate	Unit
Snow Shield/Sidewalk safe melt	$45.00	per Bag

Hold Harmless: The Client expressly waives the right to be indemnified by the Contractor and agrees to indemnify and hold harmless the Contractor, its agents, and employees from and against any claim for damages save and except those which arise due to the negligence or breach of this Agreement of the Contractor.

Performance: The Client expressly acknowledges that it has physical possession of, is responsible for, and has control over the condition of the Premises. If the Contractor is delayed in the performance of any portion of the Work by the application of a by-law, by a stop work order (providing the order was not issued as a result of an act or omission of the Contractor), by labor disputes, lock outs, fire, or by any other circumstance reasonably beyond the Contractor's control, including extremely heavy winter conditions, then the time for the performance of that portion of the Work shall extend until the Contractor is no longer so delayed. If during any particular attendance the Contractor is unable to perform work in an area of the Premises due to the presence of any vehicles, structures or equipment on the Premises, the Contractor will not be required to perform the Work in those areas until the Contractor's next attendance at the Premises.

Billing: Invoices will be sent for an event normally within 2-business days of the event ending or as soon as the weather reporting is published for the event, whichever is sooner.

Non-Payment: In the event that a payment is unpaid by the Client more than fifteen (15) days after receipt of the invoice, the Client shall pay the Company a service charge of 2.5% per month. If outside assistance is used to collect the balance owed, the Client is solely responsible for all costs associated with the collection including, but not limited to, a mandatory minimum fee of twenty-five percent (25%) of the total invoice, plus attorney's fees, court costs, and property liens. If the account is past due, Bates Landscaping may, without notice, suspend the obligation to provide service until all amounts past due are paid in full.

Weather Reporting & Invoicing:

- The Contractor utilizes a neutral 3rd party weather service (WeatherWorks or equivalent) to provide accurate post storm reporting and pre storm predictions.
- Post storm invoicing will be generated based off of these reporting services.
- Pre storm applications, preparation, and service will be based off these predictions and forecasting.
- The Contractor will not accept any other source of reporting for post storm invoicing. Non accepted sources include but are not limited to; other meteorological organizations, local news reports, self-certification or any other source not specified here.

Repairs and Payment: Any damage or warranty repairs for the contract will only be performed if payment has been received in full for snow removal services.

Right of First Repair: The Contractor will repair any damages that both parties agree were caused by The Contractor. In this case, we will handle all repairs in house or with subcontractors of our choosing unless otherwise agreed to in writing. The Contractor will not remit payment for any repairs performed by an outside contractor without written permission first.

Soft Damage vs Hard Damage:

- The Contractor defines "soft damage" as damage to turf, mulch, soil, grading, trees, and other living landscape features.
- Soft damages that both parties agree resulted from The Contractor work will be repaired no later than May 15th.
- The Contractor defines "Hard Damages" as damages to asphalt, curbing, concrete, garage doors, mailboxes, or other exterior structures.
- Hard damages that both parties agree resulted from The Contractor's work will be repaired no later than August 31st.

Wear and Tear: As with any work, typical "wear and tear" is common. The Contractor considers wear and tear as cosmetic scratches to asphalt smaller than .25" deep, damage to interior floors or carpet from tracking de-icing applications inside, worsening of existing potholes and cracks to asphalt or concrete, pushing of stone in gravel lots and drives, tire marks on asphalt, or concrete due to removal operations.

- Any of these damages deemed wear and tear will not be covered or repaired by Bates Landscaping postseason.

Product effectiveness: The Client acknowledges that Ice Melting Products, which are not intended to provide traction, are freeze point depressants only, the effectiveness of which will depend on ground temperatures and weather conditions at, and following, the time of their application. The Client further acknowledges that the application of Ice Melting Products will not and cannot result in the immediate or complete removal of ice or snow from the Premises and the Contractor provides no guarantee or warranty that the application of Ice Melting Products will be effective in eliminating ice or snow. The application of Ice Melting Products is towards managing, but not eliminating, the risks associated with snow and ice.

Material Tracking: Tracking material indoors cannot be prevented by The Contractor. We suggest floor mats and consistent cleaning during the winter months December through March. The Contractor will not be held liable for any cleaning or wear and tear caused to floors, carpets, or other interior surfaces due to de-icing material being tracked indoors.

Pets & Other Animals: The Contractor cannot be expected to apply pet friendly material unless specifically requested in writing. We will not be responsible for any veterinary bills or otherwise resulting from animals tracking, rolling in, or ingesting material that we have applied. While we apply our material per EPA guidelines it is understood that salt, calcium and otherwise may run off into the environment post event and that this is an unpreventable hazard.

Spills: Any spills resulting from equipment leakage or material spillage will be cleaned up immediately by The Contractor. Any staining areas on asphalt or concrete that may result from this will be repaired post season and considered hard damages. We will sealcoat or cut out and replace the stained area depending on the severity of the spill. The Contractor will only repair the immediate area where any spill occurred no more than 1 ft outside of the stain in each direction.

Concealed Structures: Client is responsible for identifying all known concealed structures, irrigation systems, underground lighting (as necessary), pipes, fire hydrants, manhole covers that are above grade or low hanging utility lines at the site. The Contractor shall not be held liable for damage to any undisclosed concealed hazards including, but not limited to, unmarked pipes, concealed structures, or utilities.

Concealed Contingencies: Client shall pay additional sums on a time and material basis for any additional services required to complete the job caused by concealed contingencies not readily apparent in estimating the Services agreed to. In the event the site map changes, or there are any delays resulting from unanticipated interruptions outside the control of the Contractor, the client will be notified of additional charges before additional services take place.

Access: Client shall provide access to work areas at the site for employees and vehicles, and agrees to keep driveways clear and available for the movement and parking of trucks and equipment during storm hours. Unless otherwise specified in this Agreement, the Contractor shall not be expected to keep gates closed for any reason and shall not be liable for any injuries or damages resulting from such access.

Change Orders: Any extra services which are requested or required due to the condition of the property, building, change of building code, increase in material prices, increase in labor prices, increase in fuel prices or concealed contingencies shall

be performed only after a written change order, "Addendum" is signed by the Client upon a change order form, or expressly agreed to by the Parties in writing and delivered to the Contractor. A change order may increase or decrease the price, for more or less time to complete work, provide for more or less materials, or for labor and other clauses. Not withstanding the foregoing, the Contractor reserves the right to change the materials used on the job without prior notice to or approval from the Client, provided that the changed materials are comparable in price, quality, and appearance, as determined by the Contractor in its sole discretion.

The Contractor's Required Insurance: The Contractor is insured for liability resulting from injury to persons or property, automotive, and carries a valid worker's compensation policy.

Default: In the event that either Party defaults under this Agreement, the non-defaulting Party shall deliver to the defaulting Party a dated "notice of default," specifying the default and requesting the correction thereof. In no event shall the Contractor be liable for any consequential, incidental, or special damages. In the event of default by the Client, the Contractor shall have the right, but not the obligation, to suspend or terminate the Services and to peacefully repossess all materials previously delivered for which payment has not been made in full, to remove its equipment from the job site and terminate this Agreement.

Notices: Any notices to either Party under this Agreement shall be in writing and delivered by hand, sent by nationally recognized messenger service, registered or certified mail, or email.

Termination: Notice of termination of this Agreement by the Client is to be received by the Contractor no less than thirty (30) days before work is scheduled to start. In the event of termination of this Agreement by the Client before work is scheduled to start, the Client waives any and all right to injunctive relief in the event of any dispute with the Contractor, and the Client's sole remedy in such a dispute shall be at law.

Governing Law: This Agreement shall be governed and construed in accordance with the laws of the Commonwealth of Pennsylvania applicable to contracts made and fully performed therein, and the state and federal courts located in Pennsylvania shall have exclusive jurisdiction of all suits and proceedings arising out of or in connection with this Agreement. Both Parties hereby submit to the jurisdiction of said courts for the purposes of any such suit or proceeding and waive any claim that any such forum is an inconvenient forum.

Storm Emails & Opt-Outs:

- Pre event, The Contractor will make its best effort to send out a "Pre Storm" email to all our clients before the start of each event.
- These emails are normally sent between 2 - 12 hours before the event as the event changes or grows in complexity.
- This email will include predictions for the event and a rough outline of the service we expect to provide. This email should give a better insight of temperatures, wind gusts, type of storm, and what level of service to be expected.
- Client will provide a point of contact that will respond to these emails in a timely fashion should they decide to opt out.
- Any event or storm opts out must be sent in reply to this storm email within the designated time frame. If we do not receive a response via email or text, then we will perform the service as outlined in the email.
- Any time an opt out is exercised the client assumes all risk and total responsibility associated with injury, accidents, or slip and fall stemming from the event in question. This includes but is not limited to the days following the event when melt and refreeze makes areas unsafe and unsuitable for pedestrian traffic.

Client Communication: Please provide a reliable, alternative point of contact and a backup if that person is not available. This person will be responsible for opting out of services, notifying The Contractor if the location is closed for holidays or snowstorms above a certain threshold. Point of contact will notify The Contractor of any such closures or downgraded service requests due to closures. If not notified in writing, The Contractor will service as stated in the pre storm email

Multiple Events: In some instances, storms may last for over 18-hours or come in as multiple systems that combine in one area. Storms of this nature will come in with two separate weather reports and will be billed as such (two separate

events).

Blowing and drifting: Blowing and drifting is when we have cleared an event, winds are sustained after the event and snow or ice re-covers a majority or some of the areas we have cleared during the event. In this event some areas will be fixable with a de-icing application. In the event the area needs to be re-shoveled or re-plowed this will fall under our time and material rates and be charged as such.

Site Staging: On some sites staging of equipment and materials is necessary. The Contractor will be responsible for the security and maintenance of our own equipment on site.

Individual responsibility: Vandalism, damages, and theft. The Contractor understands the client cannot control what visitors, trespassers and renters/homeowners do on the property. However, The Contractor reserves the right to hold individuals responsible as determined after an investigation for damage or theft to our equipment or material. This includes, but is not limited to; homeowners, renters, trespassers, customers of the onsite business, employees at the business and all others that may visit the property.

Snow Hauling: At times The Contractor may run out of room and will need to haul snow piles to an offsite location. This is considered a change order and billed at a time and materials rate. The Client will be notified and will need to approve before proceeding.

Snow piling: The Contractor will provide, and Client will sign off or Client will provide a map with marked locations to pile snow. When these locations are full, and no other areas have been presented by the Client, The Contractor may at a future time recommend snow hauling off site. If the Client provides specific locations for snow piling that are detrimental to a refreeze location, The Contractor will suggest an alternate site. If no alternate site is chosen, the Client may be responsible for additional de-icing or hauling to remedy ice conditions.

Municipal - In some instances municipal or other private companies will be responsible for plowing and snow clearing of adjacent properties / streets. In these circumstances many times handicap ramps, sidewalks, aprons, and intersections that have previously been cleared by The Contractor will be plowed in again. If the area The Contractor are responsible for has already been serviced by The Contractor, and is plowed in again, this may result in additional charges.

Holidays - During the holidays of: Thanksgiving Day (24-hour period), Christmas Eve & Day (48-hour period), and/or New Years Eve & Day (48-hour period), if service is needed a 10% surcharge will be added to all invoicing within these time periods.

Vehicles - The Contractor will not clear areas within 24" of parked vehicles. Further, The Contractor will not clear or apply de-icing material between parked vehicles or between/behind parking stops unless stated in writing in this agreement. The Contractor will not be held responsible for slip and fall on painted curbs or parking stops.

Estimate authorized by:	Melissa Blake	**Estimate approved by:**	
	Melissa Blake		
Signature Date:	10/22/2026	**Signature Date:**	
Email:	melissa@bateslandscaping.net		